

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

14. MARK BARRY V. JENNIFER BARRY

25FL0627

On March 18, 2026, Petitioner filed a Request for Order (RFO) seeking modification of support orders, and an order for the sale of the marital residence. He filed his Income and Expense Declaration concurrently therewith. Petitioner concurrently filed an Order Shortening Time (OST) which was granted. All required documents were served on March 23rd.

Respondent filed and served her Responsive Declaration to Request for Order and Income and Expense Declaration on March 27th; however, Respondent did not use the FL-320, which is a mandatory use form. Therefore, the court cannot consider the Responsive Declaration.

Petitioner asks the court to reduce child and spousal support or temporarily set them to zero dollars, due to his current inability to work. Petitioner is also requesting an order for the marital residence located on Azalea Circle in Pollock Pines to be listed for sale. Petitioner asserts the home is in danger of entering foreclosure due to his inability to pay the mortgage.

The court finds Petitioner is currently unable to work, and as of March 16, 2026, is not earning income. Petitioner has applied for, but is not yet receiving, disability pay. As such, the court temporarily sets guideline child support at \$0 effective April 15, 2026. Likewise, the court temporarily sets temporary guideline spousal support at \$0 effective April 15, 2026. The court is reserving jurisdiction to retroactively modify support to April 15, 2026. The court sets a review hearing for July 9, 2026 at 8:30 AM to review child and spousal support.

Regarding the sale of the marital residence, it is a longstanding tenant of the law that the court shall divide the community estate of the parties equally. Cal. Fam. Code 2550. Inherent in the court's authority to ensure that community assets are divided equally, the court holds broad discretion to "[a]t any time during the proceeding...order the liquidation of community or quasi-community assets so as to avoid unreasonable market or investment risks..." Cal. Fam. Code § 2108. Here, the residence does appear to be in present danger of foreclosure or destruction. Thus, the court orders the sale of the home to preserve the community interest. Petitioner is ordered to provide the names of three potential real estate agents to Respondent on or before April 23, 2026. Respondent is ordered to select one of the three by no later than April 30, 2026. The home is to be listed for sale by no later than May 7, 2026.

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The parties are ordered to take no action which would delay, hinder, or otherwise prevent the sale, including actions which would prevent cleaning, repairs, and maintenance or showing of the home in furtherance of its sale. The parties are ordered to cooperate with the real estate professional to make the home available for showings and to communicate with the real estate professional as needed. The real estate professional is authorized to determine the listing price for the home. The parties are ordered to accept any reasonable offer for the purchase of the home if one is received. The parties are to sign all documents related to the sale of the home in a timely manner. Net proceeds of the sale are to be placed in Petitioner's Attorney Trust Account until written agreement of the parties or until court order to release the proceeds. The court reserves jurisdiction over all aspects of the sale and distribution of the net proceeds of the sale, including, but not limited to, the court's authority to direct the clerk to act as elisor for Respondent's signature if necessary.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: THE COURT TEMPORARILY SETS GUIDELINE CHILD SUPPORT AT \$0 EFFECTIVE APRIL 15, 2026. LIKEWISE, THE COURT TEMPORARILY SETS TEMPORARY GUIDELINE SPOUSAL SUPPORT AT \$0 EFFECTIVE APRIL 15, 2026. THE COURT IS RESERVING JURISDICTION TO RETROACTIVELY MODIFY SUPPORT TO APRIL 15, 2026. THE COURT SETS A REVIEW HEARING FOR JULY 9, 2026 AT 8:30 AM TO REVIEW CHILD AND SPOUSAL SUPPORT.

THE COURT ORDERS THE SALE OF THE HOME TO PRESERVE THE COMMUNITY INTEREST. PETITIONER IS ORDERED TO PROVIDE THE NAMES OF THREE POTENTIAL REAL ESTATE AGENTS TO RESPONDENT ON OR BEFORE APRIL 23, 2026. RESPONDENT IS ORDERED TO SELECT ONE OF THE THREE BY NO LATER THAN APRIL 30, 2026. THE HOME IS TO BE LISTED FOR SALE BY NO LATER THAN MAY 7, 2026.

THE PARTIES ARE ORDERED TO TAKE NO ACTION WHICH WOULD DELAY, HINDER, OR OTHERWISE PREVENT THE SALE, INCLUDING ACTIONS WHICH WOULD PREVENT CLEANING, REPAIRS, AND MAINTENANCE OR SHOWING OF THE HOME IN FURTHERANCE OF ITS SALE. THE PARTIES ARE ORDERED TO COOPERATE WITH THE REAL ESTATE PROFESSIONAL TO MAKE THE HOME AVAILABLE FOR SHOWINGS AND TO COMMUNICATE WITH THE REAL ESTATE PROFESSIONAL AS NEEDED. THE REAL ESTATE PROFESSIONAL IS AUTHORIZED TO DETERMINE THE LISTING PRICE FOR THE HOME.

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THE PARTIES ARE ORDERED TO ACCEPT ANY REASONABLE OFFER FOR THE PURCHASE OF THE HOME IF ONE IS RECEIVED. THE PARTIES ARE TO SIGN ALL DOCUMENTS RELATED TO THE SALE OF THE HOME IN A TIMELY MANNER. NET PROCEEDS OF THE SALE ARE TO BE PLACED IN PETITIONER'S ATTORNEY TRUST ACCOUNT UNTIL WRITTEN AGREEMENT OF THE PARTIES OR UNTIL COURT ORDER TO RELEASE THE PROCEEDS. THE COURT RESERVES JURISDICTION OVER ALL ASPECTS OF THE SALE AND DISTRIBUTION OF THE NET PROCEEDS OF THE SALE, INCLUDING, BUT NOT LIMITED TO, THE COURT'S AUTHORITY TO DIRECT THE CLERK TO ACT AS ELISOR FOR RESPONDENT'S SIGNATURE IF NECESSARY.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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15. DAVID KNIGHT V. AUBREY KNIGHT

23FL0645

Respondent filed a Request for Order (RFO) on November 13, 2025, seeking enforcement of the judgment and Family Code section 2030 attorney's fees. Respondent concurrently filed an Income and Expense Declaration. This is a post-judgment request for enforcement, and as such Family Code section 215 applies. Proof of Service shows Petitioner was mail-served on January 7, 2026, with address verification. Enforcement of the judgment and attorney's fees do not fall within the exceptions of Family Code section 215 that allow for mail service with address verification. The public policy behind Family Code § 215 is to ensure actual notice to a party where matters such as custody are often ongoing past final judgment in a case. The policy is to treat the new motion as akin to a newly filed Complaint. Therefore, personal service is required.

Respondent appeared for the hearing on February 5, 2026. Petitioner failed to appear. Respondent requested the matter be continued to allow additional time to perfect service. The court granted the request to continue and scheduled the matter for a hearing on April 9, 2026 at 1:30 PM in Department 5.

Respondent filed a Proof of Personal Service on March 18, 2026, showing that the process server substitute served Petitioner on March 13, 2026. Petitioner was subsequently electronically served on March 17, 2026. The court finds service to have been perfected.

Respondent filed a Supplemental Declaration on March 25, 2026. It was mail-served the same day. Respondent is seeking enforcement of the judgment that Petitioner pay the \$600,000 equalization payment along with legal interest in the amount of \$42,000, for a total payment of \$642,000. Additionally, Respondent is seeking \$5,000 in attorney's fees for being forced to file this motion to enforce the judgment. Additionally, Respondent is seeking \$3,500 in Family Code section 271 sanctions for the behavior of Petitioner in avoiding service and the additional fees incurred to effectuate service.

Petitioner has not filed a Responsive Declaration to Request for Order, therefore, the court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court grants Respondent's motion in its entirety. Petitioner is ordered to pay the equalization payment of \$600,000, along with legal interest, on or before May 1, 2026. Petitioner is to withdraw the funds from his 401(k) as set forth in the parties' judgement provision 7.01.